

DISSENTING OPINION BY M. LODER.

[*Translation.*]

Turkey, having arrested, tried and convicted a foreigner for an offence which he is alleged to have committed outside her territory, claims to have been authorized to do so by reason of the absence of a prohibitive rule of international law.

Her defence is based on the contention that under international law everything which is not prohibited is permitted.

In other words, on the contention that, under international law, every door is open unless it is closed by treaty or by established custom.

The Court in its judgment holds that this view is correct, well founded, and in accordance with actual facts.

I regret that I am unable to concur with the opinion of the Court.

It seems to me that the contention is at variance with the spirit of international law. This law is for the most part unwritten and lacks sanctions ; it rests on a general consensus of opinion ; on the acceptance by civilized States, members of the great community of nations, of rules, customs and existing conditions which they are bound to respect in their mutual relations, although neither committed to writing nor confirmed by conventions. This body of rules is called international law.

These rules may be gradually modified, altered or extended, in accordance with the views of a considerable majority of these States, as this consensus of opinion develops, but it seems to me incorrect to say that the municipal law of a minority of States suffices to abrogate or change them.

It also appears to me incorrect to claim that the absence of international disputes or diplomatic difficulties in regard to certain provisions of the laws of some States, which are at variance with generally accepted ideas, can serve to show the development or modification of such ideas.

International *disputes* only arise when a particular *application* of the laws in question shows them to be at variance with international law.

The family of nations consists of a collection of different sovereign and independent States.

The fundamental consequence of their independence and sovereignty is that no municipal law, in the particular case under consideration no criminal law, can apply or have binding effect outside the national territory.

This fundamental truth, which is not a custom but the direct and inevitable consequence of its premiss, is a logical principle of law, and is a postulate upon which the mutual independence of States rests.

The criminal law of a State applies in the first place to all persons within its territory, whether nationals or foreigners, because the right of jurisdiction over its own territory is an attribute of its sovereignty.

The criminal law of a State may extend to crimes and offences committed abroad by its nationals, since such nationals are subject to the law of their own country ; but it *cannot* extend to offences committed by a foreigner in foreign territory, without infringing the sovereign rights of the foreign State concerned, since in that State the State enacting the law has no jurisdiction.

Nor can such a law extend in the territory of the State enacting it to an offence committed by a foreigner abroad should the foreigner happen to be in this territory after the commission of the offence, because the guilty act has not been committed within the area subject to the jurisdiction of that State and the *subsequent presence of the guilty person* cannot have the effect of *extending the jurisdiction of the State*.

It seems to me clear that such is the logical consequence of the fundamental principle above enunciated.

It however is also clear that this consequence can be overridden by some convention to the contrary effect or by some exception generally and even tacitly recognized by international law.

Like all exceptions, however, such an exception must be strictly construed and cannot be substituted for the well-established rule, to which it is an exception.

Now, the rule has gradually undergone an important modification in the legislation of a somewhat large majority of civilized States, a modification which does not seem to have encountered objections and which may be regarded as having been accepted. This modification tends to except from the strict rule governing the jurisdiction over offences committed by foreigners abroad such offences, in so far as they are directed against the State itself or

against its security or credit. The injured State may try the guilty persons according to its own law if they happen to be in its territory or, if necessary, it may ask for their extradition.

Apart from this exception, the rule holds good.

The so-called system of "protection" which Turkey claims to be entitled to apply and which is tantamount to the abrogation of the rule itself, is very far from being accepted by the great majority of States and is not in my opinion in harmony with positive international law.

The alleged offence with which M. Demons is charged by Turkey, namely, involuntary manslaughter, does not fall within the scope of the exception which I have mentioned. Turkey admits that she is applying the so-called system of "protection" in pursuance of her municipal law and she holds that she is authorized to do so because she has found nowhere a positive and accepted rule prohibiting her from so doing.

It will appear from the foregoing that I am of opinion that for this reason alone, Turkey must be held to have acted in contravention of the principles of international law.

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The Court has been made cognizant of a definite occurrence; it has to give judgment upon a particular case. This case is the collision between the French ship *Lotus* and the Turkish ship *Boz-Kourt*.

Turkey claims that both vessels, owing to faulty navigation, were jointly to blame for this collision.

The result of the collision was that the *Boz-Kourt* sank, and that some members of the crew and passengers were drowned.

Turkey argues from these facts that M. Demons, officer of the watch on board the *Lotus*, is guilty of manslaughter and that he is responsible for the death of the persons above mentioned.

She argues that this offence took place on board the *Boz-Kourt* because it was there that the effects of the alleged negligence were felt.

She therefore contends that the wrongful act having taken place on board the Turkish ship, its author is amenable to the jurisdiction of the Turkish Courts.

If this argument be sound, in point of fact the deduction made from it is correct and the accusation of having acted contrary to

the principles of international law at once falls to the ground, because every State is entitled to prosecute and sentence any foreigner who commits an offence within its territory. And the vessel *Boz-Kourt* must be regarded as Turkish territory.

The question of the localization of the offence is therefore of capital importance for the purposes of the decision of the dispute before the Court.

It is clear that the place where an offence has been committed is necessarily that where the guilty person is when he commits the act. The assumption that the place where the effect is produced is the place where the act was committed is in every case a legal fiction. It is, however, justified where the act and its effect are indistinguishable, when there is a direct relation between them; for instance, a shot fired at a person on the other side of a frontier; a parcel containing an infernal machine intended to explode on being opened by the person to whom it is sent. The author of the crime intends in such cases to inflict injury at a place other than that where he himself is.

But the case which the Court has to consider bears no resemblance to these instances. The officer of the *Lotus*, who had never set foot on board the *Boz-Kourt*, had no intention of injuring anyone, and no such intention is imputed to him. The movements executed in the navigation of a vessel are only designed to avoid an accident.

Only an investigation by naval experts into the circumstances can show whether the manner in which the ship was navigated is to be regarded as contrary to the regulations or negligent in some respect, or whether some unforeseen movement by the other vessel contributed to the accident—and this investigation is a matter solely for the naval authorities of the country of the person responsible for navigating the ship.

In these circumstances, it seems to me that the legal fiction whereby the act is held to have been committed at the place where the effect is produced must be discarded.

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Turkey seeks to base her jurisdiction upon an alleged “connexity” between the movements of the two vessels.

She, in fact, claims that the offence of involuntary manslaughter, imputed to M. Demons, is "connected" (*connexe*) with the identical charge against the captain of the *Boz-Kourt* and that the Turkish court has jurisdiction on this ground.

This argument is also unsound.

Simultaneousness is not the same as "connexity".

The movements of the two vessels were independent of each other: the movement of each ship was even unknown to the officer commanding the other.

The result of both movements may have been the collision, but there is no kind of "connexity" between them.

A municipal statute, or a code of procedure, may, in order to simplify the conduct of two or more cases and to facilitate their examination, provide for the possibility of their joinder by reason of their being connected. Proceedings must then have been instituted in both cases before they can be joined on the ground of connection between them (*connexité*). And joinder will only be possible if the judge before whom the joined causes are brought has jurisdiction in respect of each of them separately.

Joinder on the ground of "connexity" is a proceeding under municipal law; "connexity" does not create *jurisdiction*.

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The general rule that the criminal law of a State loses its compelling force and its applicability in relation to offences committed by a foreigner in foreign territory, a rule derived from the basic principle of the sovereignty and independence of States, has indeed undergone modifications and has been made subject to exceptions restricting its scope by the mutual consent of the different Powers in so far as territory properly so called is concerned.

But according to a generally accepted view, this is not the case as regards the high seas. There the law of the flag and national jurisdiction have retained their indisputable authority to the exclusion of all foreign law or jurisdiction. I lay special stress on the word "foreign". A guilty person on board a ship flying the flag of a State other than the one to which he owes allegiance, may of course be indicted and sentenced by the State of which he is a national. In that case, but only then, there will be concurrent jurisdiction.

But that is not *M. Demons'* case.

A merchant ship being a complete entity, organized and subject to discipline in conformity with the laws and subject to the control of the State whose flag it flies, and having regard to the absence of all territorial sovereignty upon the high seas, it is only natural that as far as concerns criminal law this entity should come under the jurisdiction of that State. This applies with especial force to the case now before the Court. The accusation against Lieutenant Demons is that whilst navigating his ship he gave an order for a wrong manœuvre.

The rules for navigation which he was obliged to follow were those contained in his national regulations. He was responsible to his national authorities for the observance of these rules. It was solely for these authorities to consider whether the officer had observed these rules, whether he had done his duty, and, if not, whether he had neglected their observance to such a degree as to have incurred criminal responsibility.

It consequently seems to me that Turkey, in arrogating to herself jurisdiction over the acts of a foreign officer doing duty on the high seas on a ship carrying a foreign flag, has acted in contravention of the principle of international law set out above.

On these grounds I regret that I am unable to concur with the Court in its present judgment.
